AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE OF PAGES
	1 | 2

2. AMENDMENT/MODIFICATION NUMBER	3. EFFECTIVE DATE	4. REQUISITION/PURCHASE REQUISITION NUMBER	5. PROJECT NUMBER *(If applicable)*
0004	12/02/2021		

6. ISSUED BY	CODE	7. ADMINISTERED BY *(If other than Item 6)*	CODE
U.S. Department of Energy SPRPMO 900 Commerce Road East New Orleans, LA 70123	892435		

8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*	(X)	9A. AMENDMENT OF SOLICITATION NUMBER / 9B. DATED *(SEE ITEM 11)*	10A. MODIFICATION OF CONTRACT/ORDER NUMBER / 10B. DATED (SEE ITEM 13)
	☒	DE-RP96-22PO00001 11/24/2021	
	☐		

CODE	FACILITY CODE

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended ☒ not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing items 8 and 15, and returning ___1___ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	
☐	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation data, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

The above numbered solicitation is amended as shown on Page 2.

The Proposal Due Date of December 6, 2021, 10:00am Central Time, remains unchanged.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*		16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		*(Signature of Contracting Officer)*	

Section L, Paragraph L.5(b)(3) –
This paragraph is revised to read as follows:

"(3) All bid information on a Completed Offer Form comprises an Offer.
Completed Offer Form: For each line item in Exhibit A.1 as applicable for which the Offeror submits an offer, the following information shall be provided: (1) DOE SPR site(s), (2) Volume Offered, (3) Period of Delivery from SPR, (4) Period of Return Oil Delivery to SPR (5) Return Oil Grade Type, (6) API, (7) Sulfur, (8) Delivery mode and (9) Location."

Section M, Paragraph M.3.f.a –
The first sentence of this paragraph is revised to read as follows:

"a. Within five business days after receipt of award, the Purchaser must provide to the Contracting Officer an "Irrevocable Standby Letter of Credit" established in favor of the United States Department of Energy equal to 100 percent of the value of the contracted quantity of the SPR Crude oil at the time of contract award and containing the substantive provisions set out in Exhibit I."

Section M, Paragraph M.3.f.b –
The following note is added to the end of this paragraph:

"NOTE: If an offeror's issuing bank is unable to provide a Payment and Performance Letter of Credit with a final expiration date equal to ninety days after the last delivery of Return Oil to the SPR, a letter of credit may contain a mutually agreeable auto renew provision provided that the final expiration date is equal to ninety days after the last delivery of Return Oil to the SPR. If a Payment and Performance Letter of Credit contains a mutually agreed upon auto renewal provision and an award is made, the offeror will be required to provide evidence to the SPR confirming each subsequent auto renewal."

Section M, Paragraph M.3.f.d –
The first sentence of this paragraph is revised to read as follows:

"d. Within thirty calendar days after the inventory close-out reconciliation, barring any exceptions, (Section B.7), the Contracting Officer shall authorize the cancellation of the letter of credit and shall return it to the bank or financial institution issuing the letter of credit."